

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT STATUS REPORT

Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents”) (collectively, “the Parties”), by their respective undersigned counsel, and, pursuant to the Second Revised Scheduling Order issued by the Presiding Officer on November 17, 2023, hereby file this Joint Status Report describing the status of discovery in this proceeding.

Prior to November 17, 2023, the Parties had already exchanged written discovery requests, including interrogatories, requests for admission, and requests for the production of documents and electronically stored information (“ESI”), as well as objections and responses to such requests.

A. Complainant’s Production of Documents

Complainant has served two production sets to date (the first on October 2, 2023, and the second on October 19, 2023), consisting of a total of 154,565 documents totaling 528,819 pages.

Complainant has continued to diligently review documents previously flagged for privilege to finalize sets of documents that need to be withheld or redacted for privilege or that can be produced without redaction. Complainant expects to make rolling document productions as it

finalizes tranches of responsive, non-privileged documents in order to complete its non-privileged document production by the date specified in the Second Revised Scheduling Order, February 15, 2024.

B. Respondents' Production of Documents

Respondents previously served three (3) production sets on a weekly rolling basis (October 25, 2023; November 3, 2023; and November 9, 2023), consisting of 79,457 pages of documents. Since November 17, 2023, Respondents have produced three (3) "Confidential" and "Attorneys Eyes Only" sets of documents to counsel for Complainant, totaling an additional 69,959 pages of documents, marked as follows:

- November 17, 2023: OOCL_0000079458- OOCL_0000098671
- November 27, 2023: OOCL_0000098672 - OOCL_0000133785
- December 10, 2023: OOCL_0000133786 - OOCL_0000149411

This brings the total number of pages of documents produced by Respondents thus far to a grand total of 149,411.

Respondent remains diligently committed to weekly document productions and is therefore on track to complete its non-privileged document production by the date specified in the above procedural order, February 15, 2024.

Respondents' team has reviewed an additional 9,174 documents since its last production on December 10, 2023. Respondents continue to review documents on a daily basis and will be making another production of documents early next week.

C. Summary

The Parties continue to believe they will likely collectively produce hundreds of thousands of pages of documents in this proceeding. The Parties continue to work diligently to complete the

review and production of documents in accordance with the Second Revised Scheduling Order. As required by that Order, the next Joint Status Report will accordingly be filed on March 15, 2024.

Dated: December 15, 2023

Respectfully submitted,

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